

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #07	CCRB Case #: 201808486	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 10/04/2018 2:40 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/19/2020	Precinct: 105
Date/Time CV Reported Thu, 10/04/2018 11:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/12/2018 11:05 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Adriano Deleon	02580	940069	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Geyer	12361	952777	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Adriano Deleon	Force: Sergeant Adriano Deleon pointed his gun at § 87(2)(b)	A . Exonerated
B . SGT Adriano Deleon	Discourtesy: Sergeant Adriano Deleon spoke discourteously to § 87(2)(b)	B . Exonerated

Case Summary

On October 4, 2018, Sgt. Adriano Deleon called the IAB Command Center and reported this complaint on behalf of § 87(2)(b). On October 12, 2018, the case was received at the CCRB.

On October 4, 2018, at approximately 2:40 p.m., in the vicinity of § 87(2)(b) and § 87(2)(b) in Queens, Sergeant Adriano Deleon of the 105th Precinct pointed his gun at § 87(2)(b) (Allegation A: Force, exonerated), and said to him, “Put your hands behinds your fucking back.” (Allegation B: Discourtesy, exonerated).

§ 87(2)(b) was arrested for § 87(2)(b) as a result of this incident. § 87(2)(b) [§§ 86(1)(2)&(4)] [§ 87(2)(g)]

Police Officer Michael Geyer recorded this incident on his body worn camera (BR01).

Findings and Recommendations

Allegation (A) Force: Sergeant Adriano Deleon pointed his gun at § 87(2)(b)

Allegation (B) Discourtesy: Sergeant Adriano Deleon spoke discourteously to § 87(2)(b)

§ 87(2)(b) has become uncooperative with the investigation despite extensive contact attempts made to him (BR02).



201808486_20181116_1352_DM.AVI

PO Geyer’s BWC (see above file #201808486_20181116_1352_DM) shows a man, identified via investigation as § 87(2)(b) pointing towards § 87(2)(b), and PO Geyer running towards that direction (14:39:03). At 14:39:18, the video shows Sgt. Deleon pointing his gun forward and running towards a man dressed in a red shirt and blue pants, identified via investigation as § 87(2)(b) (Snapshots of this footage can be found in IAs# 65 and 66 (BR03-BR04)). Sgt. Deleon and PO Geyer both order § 87(2)(b) to get on the ground as they run towards him. At 14:39:23, § 87(2)(b) lies backwards on the ground. The two officers approach and order him to turn around and put his hands behind his back. At 14:39:29, § 87(2)(b) turns and lies face forward on the ground, but he does not put his hands behind his back. At 14:39:30, Sgt. Deleon says to § 87(2)(b) “Put your hands behind your fucking back.” He then grabs § 87(2)(b)’s shoulder and an unspecified part of his body, which is not clearly depicted in the video. § 87(2)(b) tells the officers that he is disabled and unable to put his hands behind his back. The video does not clearly depict what additional actions the officers take, except that between 14:39:35 and 14:43:29, the officers handcuff § 87(2)(b), lift him up from the ground, search him, and place him in the backseat of a marked police van. § 87(2)(g)

Sgt. Deleon (BR05) and PO Geyer (BR06) both said that they received a 911 radio transmission regarding an alleged burglary in progress at § 87(2)(b) in Queens. Sgt. Deleon and PO Geyer did not recall what other information was provided over the radio, except that alleged burglars were described as two black men who were dressed in red and green shirts, respectively. Sgt. Deleon and PO Geyer did not recall if there was any information related over the radio pertaining to weapons being involved in this incident, but said that given that the crime of burglary was deemed to be a violent felony they assumed that weapons might potentially be involved in this incident.

Sgt. Deleon and PO Geyer arrived on scene within minutes and met with § 87(2)(b) who told the officers that he saw the two black men inside the residence when he entered, and that they ran

outside immediately when they saw him. § 87(2)(b) said he chased after the two men, but lost sight of them in the vicinity of § 87(2)(b). § 87(2)(b) and the two officers then canvassed the location in search of the alleged perpetrators.

At some point, § 87(2)(b) pointed at § 87(2)(b) who was dressed in a red shirt and blue jeans, and said to the officers, “He’s here. That’s the guy.” PO Geyer and Sgt. Deleon quickly run towards § 87(2)(b) who was approximately one block away from the officers and appeared to be in the middle of the street. Sgt. Deleon run towards § 87(2)(b) with his gun pointed and ordered him to stop and get on the ground. Sgt. Deleon said he pointed his gun at § 87(2)(b) out of concern for his and PO Geyer’s safety because he did not know if § 87(2)(b) who had been identified a perpetrator of a violent crime, was armed.

§ 87(2)(b) complied with the officers’ commands and got on the ground. PO Geyer and Sgt. Deleon approached and then ordered § 87(2)(b) to put his hands behind his back. § 87(2)(b) allegedly flailed his arm, tensed his body, and then stretched his arms forward. Sgt. Deleon and PO Geyer each grabbed § 87(2)(b)’s arms, and Sgt. Deleon said to § 87(2)(b) “Put your hands behind your fucking back.” Sgt. Deleon made this statement to § 87(2)(b) because § 87(2)(b) was noncompliant with officers’ orders, thus Sgt. Deleon wanted § 87(2)(b) to know that the officers “meant business” when they ordered him to place his hands behind his back. PO Geyer and Sgt. Deleon successfully handcuffed § 87(2)(b) without incident, and he was subsequently transported the 105th Precinct by additional officers who arrived at the scene.

§ 87(2)(b) declined to provide a statement to the CCRB (BR07).

The UF-61 report prepared in relation to this incident confirms that § 87(2)(b) witnessed the alleged burglary, and that he canvassed the location with the officers, which resulted in the apprehension of § 87(2)(b) (BR08).

It is undisputed that not only did § 87(2)(b)’s pedigree and clothing description match that of the alleged perpetrator, but that § 87(2)(b) a witness to the burglary, pointed him out to the officers as one of the alleged burglars. It is also not disputed that Sgt. Deleon pointed his gun at § 87(2)(b) and used profanities towards him while ordering to put his hands behind his back.

New York State Penal Law 140 subsections 20 through 35 classifies the crime of burglary as class C violent felonies (BR09)

Police officers may draw and point their guns as a precautionary measure and safety response. People v. Livigni, 88 A.D.2d 286 (1982) (BR10). The decision to display or draw a gun should be based on an articulable belief that the potential for serious physical injury is present. NYPD Patrol Guide, Procedure 221-01 (BR11).

Patrol Guide Procedure 203-09 states that officers must be courteous and respectful in their interactions with the public. (BR12). However, in prior disciplinary cases, the NYPD has held that the use of profane remarks during stressful situations or while an officer is trying to get a chaotic situation under control, does not constitute misconduct. DAO-DCT Disciplinary Case No. 2017-17005 (BR16).

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR13).
- Sgt. Deleon has been a member-of-service for 13 years and has been a subject in seven CCRB allegations and 12 allegations, eight of which were not substantiated, and four of which remains open.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On January 31, 2019, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (BR14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date